

SENATE No. 1329

The Commonwealth of Massachusetts

PRESENTED BY:

Paul R. Feeney

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to roadway excavation quality assurance.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/4/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>2/4/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/4/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/20/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>3/12/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>9/24/2025</i>

SENATE No. 1329

By Mr. Feeney, a petition (accompanied by bill, Senate, No. 1329) of Paul R. Feeney, James K. Hawkins, Angelo J. Puppolo, Jr., Michael D. Brady and other members of the General Court for legislation to regulate utility permits for road excavation based on an agreement of wages and benefits to the laborers. Labor and Workforce Development.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to roadway excavation quality assurance.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 30 of the General Laws is hereby amended by inserting after
2 section 39T the following section:-

3 Section 39U. (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “Covered excavation project”, construction work for which a permit may be issued to a
6 contractor or subcontractor to a utility company by the state, county, authority, municipality or
7 any other political subdivision of the commonwealth. A covered excavation project may use,
8 excavate or open a street. A covered excavation project shall exclude construction work for
9 which a permit may be issued for a service provided pursuant to section 39M of chapter 30.

10 “Department of jurisdiction”, the department on behalf of the state, municipality, county,
11 district, authority or any other officer in the state, municipality, authority or any another political

subdivision of the commonwealth appointed pursuant to law, whose duty it is to issue a permit to a utility company or its contractors and subcontractors, for a covered excavation project.

“Fiscal officer”, the project manager appointed by the permit awarding authority of the state, municipality, county, district, authority or any other political subdivision of the commonwealth.

“Prevailing wage”, the minimum hourly rate set by the Massachusetts department of labor standards pursuant to sections 26 to 27F, inclusive, of chapter 149.

“Utility company”, a natural gas pipeline company, petroleum or petroleum products pipeline company, public utility company, cable television company, municipal traffic signal department and municipal utility company or department that supplies gas, electricity, telephone, communication or cable television services or private water companies within the city or town where such excavation is to be made.

(b) Each contractor or subcontractor to a utility company shall pay not less than the prevailing rate of wages and benefits in the same trade occupation in the locality within the state where such covered excavation project is situated to each laborer, worker or mechanic in the employ of the contractor or subcontractor to a utility company performing work on the project. No permit shall be issued for a covered excavation project until an agreement confirming the payment of wages and benefits, as required by this section, has been contractually mandated and filed with the department of jurisdiction. All permits issued after the effective date of this section shall include therein a copy of this section.

(c) The enforcement of any covered excavation project pursuant to this section shall be subject to the requirements of section 39M of chapter 30; sections 26 to 27F, inclusive, section

29 and section 148 of chapter 149; and chapter 152 and within the jurisdiction of the fiscal officer; provided, however, nothing contained in this section shall be deemed to construe any covered excavation project as otherwise being considered for public work under this section.

(d) The fiscal officer may issue rules and regulations governing the provisions of this section. Any violations of this section shall be grounds for determinations and orders pursuant to section 39M of chapter 30 and sections 26 to 27F, inclusive, of chapter 149.

(e) Utility companies, under local law or ordinance, required, as a condition of issuance of a permit to use or open a street, that competent workers, licensed pursuant to section 13 of chapter 30a and chapter 112, to perform any and all trades in compliance with federal and state law, shall be employed thereon and that the prevailing wages and benefits shall be the prevailing wage for the similar titles as established by the fiscal officer pursuant to this section, paid to those employed, shall be required to keep original payrolls and transcripts thereof, subscribed and sworn to or affirmed by them as true under the penalties of perjury, setting forth the names and addresses and showing for each worker, laborer or mechanic the: (i) hours and days worked; (ii) occupations worked; (iii) hourly wage rates and benefits paid; and the (iv) supplements paid or provided as, and in the manner required pursuant to sections 26 to 27F, inclusive, of chapter 149.

(f) A contractor or subcontractor to a utility company to whom a permit may be issued to use or open a street shall be required to comply with section 39M of chapter 30 and sections 26 to 27F, inclusive, of chapter 149 as a condition of the issuance of a permit to use or open a street.

(g) A contractor or subcontractor to a utility company shall be required to agree, as a condition of issuance of a permit to use or open a street, that competent workers, licensed

56 pursuant to section 13 of chapter 30a and chapter 112, to perform any and all trades in
57 compliance with federal and state law, shall be employed thereon and that prevailing wages and
58 benefits shall be the prevailing wage for the similar titles as established by the fiscal officer
59 pursuant to this section, paid to those so employed. A contractor or subcontractor to a utility
60 company shall be required to keep original payrolls and transcripts thereof, subscribed and sworn
61 to or affirmed by them as true under the penalties of perjury, setting forth the names and
62 addresses and showing for each worker, laborer or mechanic the: (i) hours and days worked; (ii)
63 occupations worked; (iii) hourly wage rates and benefits paid; and (iv) supplements paid or
64 provided as, and in the manner required by sections 26 to 27F, inclusive, of said chapter 149.